

		Plaintiff notes that Defendant Moreira is not a party to the contract between Defendant XL Funding and Plaintiff, and argues that Moreira lacks standing to enforce the agreement. But, the contract language regarding judicial reference is not limited only to parties to the contract. It expressly provides that "any claim will be resolved by a general reference proceeding." Therefore, the court finds that Moreira has standing to enforce the judicial reference clause. Defendants request that this matter be resolved by a general reference before the Hon. Yvette M. Palazuelos (Ret.) (presently affiliated with Judicate West) as referee, with the referee's fees split equally between the parties (50% by XLF and 50 % by OC CARS), and the prevailing party to be awarded the balance. Plaintiff in opposition argues that Plaintiff lacks any resources to pay for a reference, and cites to a declaration of Kamran Afrasiabi. However, no such declaration was filed. Plaintiff has submitted no evidence of its financial condition. The court thus finds Defendants' request for the parties to split the referee's fees to be fair and appropriate. Plaintiff also contends that the court cannot allow Defendants to unilaterally select the referee. But, Plaintiff does not offer any specific objections to Hon. Yvette M. Palazuelos (Ret.) of Judicate West. The court is therefore inclined to appoint Judge Palazuelos as the referee, but will entertain discussion at the hearing on this matter. Accordingly, Defendants' motion to appoint a judicial referee is granted. Defendants are ordered to provide for the court's review a proposed order, utilizing Judicial Council Form ADR-110. The proposed order should include all the information required by California Rules of Court, rule 3.902. DEMURRER The ruling on the motion for appointment of referee renders moot Plaintiff's demurrer to the Cross-Complaint. The case management conference is hereby vacated. The court sets a status conference re: judicial reference for October 3, 2025, at 9 am in Department C21. Defendants shall give notice of the ruling and of the status conference.
55	Pinon v. Joy, et al. 30-2021-01216986	NO TENTATIVE RULINGS

56	Selim v. Fujifilm Irvine Scientific, Inc. 30-2024-01374896	Hearing on motion to compel production off-calendar. Notice of withdrawal of motion filed 4/11/2025
57	Alliance Funding Group v. Kayfam Transportation LLC 30-2024-01373164	Plaintiff/Judgment Creditor Alliance Funding Group obtained a default judgment against Defendants/Judgment Debtors Kayfam Transportation LLC and Nikolle D. Mcaninch aka Nikolle McAninch ("Mcaninch"). (ROA 18.) Two writs of execution were issued. (ROA 28 & 35.) It appears that Alliance Funding Group sought to garnish Mcaninch's wages pursuant to the Wage Garnishment Law (Code Civ. Proc., § 706.010, et seq.), and that Mcaninch filed with the levying officer a claim of exemption pursuant to Code of Civil Procedure section 706.105, subdivision (b). It also appears that on March 20, 2025, the levying officer mailed Notice of Filing Claim of Exemption to Alliance Funding Group. (See Not. of Opp. to Claim of Exemption [ROA 41].) The claim of exemption was not provided to the court. As a well-regarded practice guide points out: "The judgment creditor should also file with the court copies of the debtor's claim of exemption and financial statement. (The debtor is only required to file these papers with the levying officer; thus, the court will not be able to review them unless they are filed by the judgment creditor.)" (Ahart, Cal. Practice Guide: Enforcing Judgments and Debts (The Rutter Group 2025) ¶ 6:1196.1.) A judgment creditor wishing to oppose the claim of exemption must file a notice of opposition with the levying officer within 10 days after the date of the notice of claim of exemption was mailed. (Code Civ. Proc., § 706.105, subd. (d).) This 10-day period is not extended even when the claim of exemption was served by mail. (Code Civ. Proc., § 684.310.) In addition to timely filing the notice of opposition with the levying officer, the judgment creditor must also file with the court a notice of motion for an order determining the claim of exemption and a notice of hearing on claim of exemption (Judicial Council form WG-010) within 10 days after the levying officer mailed the notice of claim of exemption. (Code Civ. Proc., § 706.105, subd. (e).) The 10-day period is not extended where the claim of exemption was served by mail. (Code Civ. Proc., § 684.310.) Finally, the judgment creditor must give written notice of at least 16 court days before the hearing to the levying officer and the judgment debtor, which is increased by five calendar days if served by regular mail. (Code Civ. Proc., §§ 706.105, subd. (e), 1005, subd. (b).)